

Mr. Gill states in his Declaration that the custom and practice of Wells Fargo was to mail these agreements to consumers after they submit a written application. Plaintiff has provided no evidence of an application by Defendant. And, even assuming it were true that Defendant did submit an application, Mr. Gill later admits in his deposition that he has no knowledge of the process by which these cardholder agreements are sent to consumers, and further admits he knows nothing about how or whether any of these particular agreements, such as the one sent to Defendant, are copied or saved. Though he testifies in his deposition that the agreement attached to his declaration was in fact the one sent to Defendant in 2013, when she allegedly opened the account, the agreements don't bear any account information; there is no internally consistent pagination system to correspond it with any of the billing statements in 2013 that were addressed to Defendant; and, even if there was some logical connection between the agreement in the Exhibit and the 2013 billing statements, the 2013 billing statements were for an entirely different account number. No explanation has been provided by Plaintiff for this discrepancy.

Disposition

The Court finds and orders as follows:

1. The MSJ is DENIED.
2. Defense to prepare the order after hearing.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

6. 9:00 AM CASE NUMBER: L25-01138
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STACEY SMITH
*HEARING ON MOTION IN RE: MTN TO ENTER JUDGMENT PURSUANT TO STIPULATION FILED BY
PLN ON 11/12/25
FILED BY:
TENTATIVE RULING:

Background

Plaintiff filed a motion to Set Aside Notice of Settlement and enter judgment pursuant to stipulation. The Motion and its additional documents were filed in a timely manner.

This Motion is unopposed, and mail service was completed at the address where the Defendant was personally served with the Complaint.

Analysis

The parties entered into a CCP 664.6 agreement, filed on 11/12/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$5,347,75, plus costs, less any credits for payments received.

The Defendant made payments of \$200.

The Motion is unopposed. There is proof of mail service to an address at Greenrock St., in Antioch. Though Defendant never filed an Answer in this matter, the Complaint does list the same address as the one used for service of this Motion; and, the Defendant did enter into an agreement in the instant matter. Thus, the Court finds that the Defendant was on notice of the cause of action in the instant matter, and that mail service of this Motion is sufficient.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$5,147.75.

Plaintiff to file order on Motion, as well as submit Judgment.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

7. 9:00 AM CASE NUMBER: L25-01522
CASE NAME: WELLS FARGO BANK, NA VS. MARITZA CARBALLO
*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS
FILED BY: WELLS FARGO BANK, NA
TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The Motion is unopposed and service was completed on counsel for Defendants.

The court granted Plaintiff's request for Admissions to be Deemed True on 10/14/25.

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that Defendant admits all statements in the complaint are true and that Defendant owes the alleged debt.

While Plaintiff addressed more than one cause of action in their Motion, this court notes that there is only one cause of action (Breach Of Contract) listed in the Complaint.